

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable William J. Monahan, Presiding
(Judge Nishigaya is on vacation)
Courtroom Clerk, Richelle Belligan
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2320

DATE: 3/11/2026 (Wednesday) TIME: 9:00 A.M. and 9:01 A.M.

TO CONTEST THE RULING: Before 4:00 p.m. today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you plan to appear and contest the ruling.
(California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

TO APPEAR AT THE HEARING: The Court prefers in-person appearances or by remote video. If you must appear virtually, please use video.

FOR YOUR NEXT HEARING DATE: Please reserve your next hearing date using Court Schedule—an online scheduling tool that can be found on the Santa Clara County court website.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, dept., and line number.

COURT REPORTERS: The Court no longer provides official court reporters. If any party wants a court reporter, the appropriate form must be submitted. See court website for policy and forms.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25CV467738	MOUNT PLEASANT COMMUNITY HOUSING LLC et al vs Anjela Lumba et al	Motion: Quash Service of summons and discovery requests on Ms. Lumba for lack of jurisdiction by DULARI J. VON CHRISTIERSON , CO-TRUSTEES OF THE VIJAY K. AND MARTHA I. LUMBA REVOCABLE LIVING TRUST DATED APRIL 26, 1996 Unopposed and GRANTED. Moving party to submit order for signature by court. [Note: Judge Nishigaya may sign it for Judge Monahan.]

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DATE: 3/11/2026 (Wednesday) TIME: 9:00 A.M. and 9:01 A.M.

<u>LINE 2</u>	23CV417018	ESTATE OF MONTE GARRETT et al vs COUNTY OF SANTA CLARA et al	Motion: Summary Judgment/Adjudication Motion for Summary Judgment or, in the alternative, Summary Adjudication by Defendants CITY OF SANTA CLARA and City of San Jose Unopposed and GRANTED. Plaintiffs Brandon Valdez, Jackie Valdez, Pati Garrett and the Estate of Monte Barrett filed a statement of non-opposition on 2/19/2026. Moving parties to submit order and judgment for signature by court. [Note: Judge Nishigaya may sign it for Judge Monahan.]
<u>LINE 3</u>	24CV448687	ISJ General Trading, LLC vs Capital Asset Exchange and Trading, LLC	Motion: Compel Further Responses to Special Interrogatories by Defendant/Cross Complainant Capital Asset Exchange and Trading, LLC Ctrl Click (or scroll down) on Lines 3-4 for tentative ruling. The court will prepare the order.
<u>LINE 4</u>	24CV448687	ISJ General Trading, LLC vs Capital Asset Exchange and Trading, LLC	Motion: Compel Plaintiff and cross-defendant ISJ General Trading LCC responses to requests for production and for sanctions by Defendant/Cross Complainant Capital Asset Exchange and Trading, LLC Ctrl Click (or scroll down) on Lines 3-4 for tentative ruling. The court will prepare the order.
<u>LINE 5</u>	24CV451966	Jehad Haggiagi et al vs Byrne Lee, M.D. et al	Motion: Compel Plaintiff to provide responses to written discovery to form interrogatories, set one; special interrogatories, set one; request for production of docs, set one; and request for monetary sanctions by Defendants Stanford Health Care, Byrne Lee, MD. and Camille Hironaka, MD Ctrl Click (or scroll down) on Line 5 for tentative ruling. The court will prepare the order.

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DATE: 3/11/2026 (Wednesday) TIME: 9:00 A.M. and 9:01 A.M.

LINE 6	25CV470309	Adan Magana vs BRP U.S. Inc., et al	Motion: Compel Defendant BRP U.S. Inc. to designate, produce person most knowledgeable (PMK) and request for production of documents at deposition by plaintiff Adan Magana Ctrl Click (or scroll down) on Lines 6-10 for tentative ruling. The court will prepare the order.
LINE 7	25CV470309	Adan Magana vs BRP U.S. Inc., et al	Motion: Compel Defendant BRP U.S. Inc. to provide objection-free responses to form Interrogatories (set one) by Plaintiff Adan Magana [***Reset from 02/25/2026 per MO filed 02/09/2026.***] Ctrl Click (or scroll down) on Lines 6-10 for tentative ruling. The court will prepare the order.
LINE 8	25CV470309	Adan Magana vs BRP U.S. Inc., et al	Motion: Compel Order establishing admissions to plaintiff's requests for admission by Plaintiff Adan Magana [***RESET from 02/25/2026 per MO filed 02/09/2026.***] Ctrl Click (or scroll down) on Lines 6-10 for tentative ruling. The court will prepare the order.
LINE 9	25CV470309	Adan Magana vs BRP U.S. Inc., et al	Motion: Compel Defendant BP U.S. INC's objection-free responses to request for production of docs (set one) by Plaintiff Adan Magana [***RESET from 02/27/2026 per MO filed 02/09/2026***] Ctrl Click (or scroll down) on Lines 6-10 for tentative ruling. The court will prepare the order.
LINE 10	25CV470309	Adan Magana vs BRP U.S. Inc., et al	Motion: Compel Defendant BRP U.S. INC's responses to special interrogatories (set one) by Plaintiff Adan Magana [***RESET from 03/04/2026 per MO filed 02/09/2026.***] Ctrl Click (or scroll down) on Lines 6-10 for tentative ruling. The court will prepare the order.

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DATE: 3/11/2026 (Wednesday) TIME: 9:00 A.M. and 9:01 A.M.

<u>LINE 11</u>	21CV387882	Jellyfish Seafood Bar, LLC vs Frank Vasquez et al	Motion: Order Motion to dismiss defs. cross complaint and to strike defs. answer for failure to obey court order and request for monetary sanctions by Plaintiff Jellyfish Seafood Bar, LLC Unopposed and GRANTED. Good cause appearing, plaintiff Jellyfish Seafood Bar, LLC (Plaintiff)'s motion for dismissal of defendant Frank Vasquez in proper (Defendant)'s cross-complaint in its entirety; and to strike Defendant's answer in its entirety for failure to obey court order is unopposed and GRANTED. Defendant's answer to Plaintiff's complaint is stricken in its entirety. Defendant's cross-complaint is dismissed in its entirety. Plaintiff's request for monetary sanctions against Defendant in the reasonable amount of \$1,215 is GRANTED. Defendant shall pay this amount to Plaintiff within 30 days of this order. This motion is granted pursuant to Code of Civil Procedure sections 2023.030, 2030.290 and 2031.300 The court will prepare the order.
<u>LINE 12</u>	22CV398325	Khung Quach et al vs Thai Quach et al	Motion: Strike Motion to Strike and /or Tax Cost by Plaintiffs Ctrl Click (or scroll down) on Line 12 for tentative ruling. The court will prepare the order.
<u>LINE 13</u>	25CV460802	Martin Gonzalez vs City of San Jose et al	Motion: Order Mtn for Costs by Defendant County of Santa Clara Ctrl Click (or scroll down) on Line 13 for tentative ruling. The court will prepare the order.

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DATE: 3/11/2026 (Wednesday) TIME: 9:00 A.M. and 9:01 A.M.

9:01 AM Line 1	25CV479479	Adobe Inc. vs Creative Flame Media, LLC	Hearing: Pro Hac Vice Counsel By Defendant Good cause appearing, defendant Creative Flame Media, LLC d/b/a Diversity Photos (Defendant)'s application for admission of out-of- state attorney Calita Robinson <i>pro hac vice</i> to represent Defendant is GRANTED. Moving party to submit order for signature by court. [Note: Judge Nishigaya may sign it for Judge Monahan.]
LINE 15			
LINE 16			
LINE 17			

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Calendar Line 1

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Calendar Line 2

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Calendar Lines 3-4

Case name: *ISJ General Trading, LLC, et al vs Capital Asset Exchange and Trading, LLC, et al*
Case No. 24CV448687

Line 3: Motion to Compel Further Responses to SI and for Monetary Sanctions

Defendant Capital Asset Exchange and Trading, LLC (Defendant)'s motion to compel plaintiff ISJ General Trading LLC (Plaintiff)' further responses to special interrogatories, set two (SI) Nos. 14, 17, 18, 19, 20, 21, 22, and 23 is GRANTED. Plaintiff shall serve verified code-compliant further responses to SI Nos. 14, 17, 18, 19, 20, 21, 22, and 23, within 20 days of this order.

Defendants request for monetary sanctions against Plaintiff is GRANTED. Plaintiff shall pay Defendant reasonable monetary sanctions of \$2,754 within 30 days of this order

Plaintiff's request for monetary sanctions is DENIED. The one subject to sanctions acted with substantial justification or other circumstances makes the imposition of sanctions unjust. Plaintiff is not the prevailing party on this motion

Discussion

Code of Civil Procedure (CCP) section 2030.300(a) provides:

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

- (1) *An answer to a particular interrogatory is evasive or incomplete.*
- (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.
- (3) *An objection to an interrogatory is without merit or too general.*

(CCP § 2030.300(a) [emphasis added].)

Defendant's motion to compel further responses is timely. (See CCP § 2030.300(c) ["within 45 days of the service of the verified response"].) Plaintiff's verified responses to the SI were dated 11/19/2025 and Defendant's motion to compel was filed less than 30 days later on 12/8/2028.

Defendant's counsel met and conferred in good faith before filing this motion. (See CCP § 2030.300 (b)(1) ["A motion under subdivision (a) shall be accompanied by a meet and confer declaration under [CCP] Section 2016.040."].) The motion is accompanied by a meet and confer declaration by Defendant's counsel under CCP section 2016.040 (as required by CCP section 2030.300(b)(1).)

Plaintiff's objections are OVERRULLED. Plaintiff failed to meet its burden to justify any objection for its failure to fully answer the interrogatories. (See, e.g., *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal. 4th 245, 255 ["see also *Coy v. Superior Court* (1962) 58 Cal. 2d 210, 220-221 [if a timely motion to compel has been filed, the burden is on responding party to justify any objection].")

If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, *but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations*, except where the information is equally available to the propounding party. (CCP § 2030.220(c) [emphasis added]; *Regency Health Servs. v. Superior Court* (1998) 64 Cal. App. 4th 1496, 1504 [“Moreover, a party has a general duty to conduct a reasonable investigation to obtain responsive information [citation], and must furnish information from all sources under his or her control. [Citation.]”].)

Those obligations include: (1) providing all responsive information of which it has personal knowledge, which includes that from sources under its control. (CCP § 2030.220; *Gordon v. Superior Court* (1984) 161 Cal.App.3d 157, 167 (*Gordon*) ; and (2) "mak[ing] a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations," except to the extent the information is equally available to plaintiffs (CCP § 2030.220, subd. (c); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406 (*Sinaiko*)).¹

(See also *Deyo v. Kilbourne* (1978) 84 Cal. App. 3d 771, 782. [“If only partial answers can be supplied, the answers should reveal all information then available to the party. *If a person cannot furnish details, he should set forth the efforts made to secure the information.* He cannot plead ignorance to information which can be obtained from sources *under his control.* [emphasis added.]”].)

Plaintiff shall serve verified code-compliant further responses to SI Nos. 14, 17, 18, 19, 20, 21, 22, and 23, within 20 days of this order.

Monetary Sanctions

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2030.300(d) [emphasis added].)

Plaintiff’s objections are **OVERRULLED**. Defendants request for monetary sanctions against Plaintiff is **GRANTED**. Plaintiff shall pay Defendant reasonable monetary sanctions of (5.1 hours at \$540 per hour for a total of) \$2,754 within 30 days of this order.

¹ The underlying citations to CCP § 2030.220; *Gordon*, 161 Cal.App.3d 157, 167 and *Sinaiko* 148 Cal.App.4th 390, 406) are considered by the court. However, this court does *not* consider Plaintiff’s citation to *Raggins v. Superior Court of Orange County*, 2024 WL 3978024 [2024 Cal. App. Unpub. LEXIS 5447, *30] as *any* authority because it is an *unpublished case*. (See Cal. Rules of Court (CRC) rule 8.115(a) [which prohibits courts and parties from citing or relying on unpublished opinions.] None of the exceptions in CRC rule 8.115(b) apply here.) *Plaintiff’s counsel is ordered to read and follow CRC rule 8.1115 in the future.*

Plaintiff's request for monetary sanctions is DENIED. The one subject to sanctions acted with substantial justification or other circumstances makes the imposition of sanctions unjust. Plaintiff is *not* the prevailing party on this motion.

Line 4: Motion to Compel Further Responses to RPD and for Monetary Sanctions

Defendant Capital Asset Exchange and Trading, LLC (Defendant)'s motion to compel plaintiff ISJ General Trading LLC (Plaintiff)' further responses to request for production, set three (RPD) Nos. 46, 47, 50, 51, 53, 54, 55, 56, 57, 58, and 59 is GRANTED. Plaintiff shall serve verified code-compliant further responses to RPD Nos. 46, 47, 50, 51, 53, 54, 55, 56, 57, 58, and 59, within 20 days of this order.

Defendants request for monetary sanctions against Plaintiff is GRANTED. Plaintiff shall pay Defendant reasonable monetary sanctions of (9.1 hours at \$540 per hour for a total of) \$4,914 within 30 days of this order.

Plaintiff's request for monetary sanctions is DENIED. The one subject to sanctions acted with substantial justification or other circumstances makes the imposition of sanctions unjust. Plaintiff is *not* the prevailing party on this motion.

Discussion

Code of Civil Procedure (CCP) section 2031.310(a) states:

On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

- (1) A statement of compliance with the demand is incomplete.
- (2) A representation of inability to comply is inadequate, incomplete, or evasive.
- (3) An objection in the response is without merit or too general.

(CCP § 2031.310(a).)

Defendant's motion was timely filed on 11/12/2025. Defendant's verified response to the RPD was served 11/25/2025 by electronic transmission. (CCP § 2031.310(c) ["45 days of the service of the verified response"]; CCP § 1010.6(a)(3)(B) ["shall be extended after service by electronic means by two court days."]; CCP § 12a ["If the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday.'](45 days from 11/25/2025 plus 2 court days for electronic service equals 47 days later is 1/11/2025 which is Veteran's Day, a court holiday, so the last day to file was 11/12/2025.)

Defendant's counsel met and conferred in good faith before filing this motion and filed a proper supporting declaration under CCP section 2016.040 as required by CCP section 2031.310(b)(2).

Defendant has shown good cause justifying the discovery. (See CCP § 2031.310(b)(2).)

Plaintiff has the burden to justify its objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.) Plaintiff failed to justify *any* of its objections. Plaintiff's objections are OVERRULED.

Code of Civil Procedure (CCP) section 2031.230 states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(CCP § 2031.230.)

Plaintiff shall serve verified code-compliant further responses to RPD Nos. 46, 47, 50, 51, 53, 54, 55, 56, 57, 58, and 59, within 20 days of this order.

Monetary Sanctions

CCP section 2030.300 (d) provides:

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(CCP § 2030.300(d).)

Plaintiff's objections are overruled. Defendants request for monetary sanctions against Plaintiff is GRANTED. Plaintiff shall pay Defendant reasonable monetary sanctions of (9.1 hours at \$540 per hour for a total of) \$4,914 within 30 days of this order.

Plaintiff's request for monetary sanctions is DENIED. The one subject to sanctions acted with substantial justification or other circumstances makes the imposition of sanctions unjust. Plaintiff is *not* the prevailing party on this motion

The court will prepare the order.

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Calendar Line 5

Case Name: *Jehad Haggiagi et al vs Bryne Lee, M.D., et al*

Case Number: 24CV451966

FI, SI and RPD

Defendants Stanford Health Care, Byrne Lee, M.D. and Camille Hironaka, M.D. (Defendants)' motion for order to compel plaintiffs Jehad Haggiagi and Hend Ben Zeglam (Plaintiffs) to provide code compliant, objection free, verified discovery responses to Defendants' Form Interrogatories, Set One (FI); Special Interrogatories, Set One (SI); and Request for Production of Documents, Set One (RPD) is GRANTED.

Plaintiffs shall serve *properly verified* code compliant, objection free, discovery responses to all the FI, SI, and RPD within 20 days of this order.

If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)....

(CCP § 2030.290(a).)

If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply:

- (a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)....

(CCP § 2031.300(a).)

Plaintiffs' failure to timely respond waived any objections. (CCP §§ 2030.290(a); 2031.300(a).) As set forth in the Reply the verifications are *not* properly verified under the laws of the state of California (because they refer to Texas law). (See CCP § 2015.5.) "A declaration not signed under penalty of perjury under the laws of California has "no evidentiary value" and can be disregarded. [Citation.]" (*Safieddine v. MBC FZ, LLC* (2024)103 Cal. App. 5th 1086, 1094.)

RFA Deemed Admissions

Defendants' request that Defendants' Requests for Admissions, Set One (RFA) be deemed admitted by Plaintiffs is GRANTED. The truth of the RFA are all DEEMED ADMITTED by Plaintiffs.

If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010....

(CCP § 2033.280(a).)

Plaintiffs' failure to timely respond waived any objections. (CCP § 2033.280(a).) As set forth in the Reply the verifications are *not* properly verified under the laws of the state of California (because they refer to Texas law). (See CCP § 2015.5.) "A declaration not signed under penalty of perjury under the laws of California has "no evidentiary value" and can be disregarded. [Citation.]" (*Safieddine v. MBC FZ, LLC* (2024)103 Cal. App. 5th 1086, 1094.) "Unsworn responses are tantamount to no responses at all. [Citation.]" (*Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636.)

Plaintiffs have *not* served substantially compliant *verified* responses to the RFA. (See CCP §§ 2033.220; 2033.280(c).)

Continuance is Denied

Plaintiffs' request for a continuance is DENIED.

Request for Nature and Amount of Damages

Defendants request that Plaintiffs serve a response to Defendants' request for nature and amount of damages pursuant to Code of Civil Procedure (CCP) section 425.11(b) is DENIED as MOOT.

Plaintiffs have served substantially compliant responses to this request for nature and amount of damages pursuant to CCP section 425.11(b). Defendants have *not* shown any verification is required to this type of response pursuant to CCP section 425.11(b) and they did *not* mention this request in their Reply.

Monetary Sanctions

Defendants request for monetary sanctions in the amount of \$3,600 against Plaintiffs and/or their attorneys of record [The Law Offices of Richard M. Katz] is GRANTED IN PART.

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust....

(CCP § 2030.290(b) [interrogatories].)

Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the

sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust....

(CCP § 2031.300(c) [document requests].)

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2033.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

(CCP § 2033.280(c) [request for admissions].)

It's GRANTED in the reasonable amount of 9 hours at \$300 per hour for a total of \$2,700 against ONLY against Plaintiffs' attorneys of record [The Law Offices of Richard M. Katz], payable to Defendants within 30 days of this order.

It's DENIED as to Plaintiffs because the court finds that other circumstances make the imposition of sanctions unjust against Plaintiffs. Plaintiff's counsel admits their calendaring error caused the failure to respond timely, not Plaintiffs. It appears likely that Plaintiff's counsel's poor drafting of the verifications under Texas law caused them to be defective.

Conclusion

Defendants' motion for order to compel Plaintiffs to provide code compliant, objection free, verified discovery responses to FI, SI and RPD is GRANTED.

Plaintiffs shall serve *properly verified* code compliant, objection free, discovery responses to all the FI, SI, and RPD within 20 days of this order.

Defendants request that Plaintiffs serve a response to Defendants' request for nature and amount of damages pursuant to CCP section 425.11(b) is DENIED as MOOT.

Defendants request for monetary sanctions in the amount of \$3,600 against Plaintiffs and/or their attorneys of record [The Law Offices of Richard M. Katz] is GRANTED IN PART.

It's GRANTED in the reasonable amount of 9 hours at \$300 per hour for a total of \$2,700 against ONLY against Plaintiffs' attorneys of record [The Law Offices of Richard M. Katz], payable to Defendants within 30 days of this order.

It's DENIED as to Plaintiffs because the court finds that other circumstances make the imposition of sanctions unjust against Plaintiffs.

The court will prepare the order.

Calendar Lines 6-10

Case Name: Adan Magana vs BRP U.S. Inc., et al

Case No.: 25CV470309

Good cause appearing, regarding plaintiff Adam Magana (Plaintiff)'s motions:

Line 6: Plaintiff's motion to compel defendant BRP U.S. Inc. (Defendant) to designate and produce requested documents at its person most knowledgeable (PMK) deposition by Plaintiff is **unopposed and GRANTED**. Defendant shall (1) designate and produce at a deposition by Plaintiff those of its officers, directors, managing agents, employees or agents who are most qualified to testify on its behalf as to the matters set forth in the notice of PMK deposition, (2) produce all documents in response to the notice of PMK deposition, and (3) appear/produce documents for such PMK deposition within 20 days of this order.²

Line 7: Plaintiff's motion to compel Defendant to provide objection free responses to Plaintiff's form interrogatories set one (FI) is GRANTED. Defendant shall provide verified, code-complaint objection free responses to FI Nos. 1.1, 2.5, and 2.8 within 20 days of this order.

If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)....

(CCP § 2030.290(a).)

The motion is *not* moot. Objections were waived by Defendant's failure to respond timely. (CCP § 2030.290(a).) The responses attached to Defendant's opposition were unverified. "Unsworn responses are tantamount to no responses at all. [Citation.]" (*Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636.)

Line 8: Plaintiff's motion for order establishing admissions to Plaintiff's requests for admissions, set one (RFA) by Defendant is GRANTED. The truth of the matters stated in Plaintiffs RFA Nos. 1-47 are DEEMED ADMTTED by Defendant.

The motion is *not* moot. Objections were waived by Defendant's failure to respond timely. The responses attached to Defendant's opposition were unverified. "Unsworn

² Although the notice of motion requested the court order compliance in 10 days, the court exercised its discretion to allow a more reasonable 20 days.

responses are tantamount to no responses at all. [Citation.]” (*Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636.)

Line 9: Plaintiff’s motion to compel Defendant’s objection free responses to Plaintiff’s request for production of documents, set one (RPD) is GRANTED. Defendant shall serve verified, code-complaint objection free responses to RPD Nos. 1-72 within 20 days of this order.

If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply:

- (a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)....

(CCP § 2031.300(a).)

The motion is *not* moot. Objections were waived by Defendant’s failure to respond timely. (CCP § 2031.300(a).) The responses attached to Defendant’s opposition were unverified. “Unsworn responses are tantamount to no responses at all. [Citation.]” (*Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636.)

Line 10: Plaintiff’s motion to compel Defendant’s [objection free] responses to Plaintiff’s special interrogatories, set one (SI) is GRANTED. Defendant shall serve verified, code-compliant objection free responses to SI Nos. 1-24 within 20 days of this order.

If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)....

(CCP § 2030.290(a).)

The motion is *not* moot. Objections were waived by Defendant’s failure to respond timely. (CCP § 2030.290(a).) The responses attached to Defendant’s opposition were unverified. “Unsworn responses are tantamount to no responses at all. [Citation.]” (*Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636.)

The court will prepare the order.

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Calendar line 11

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Calendar line 12

Case Name: *Khung Quach et al vs Thai Quach et al*

Case Number: 22CV398325

Plaintiffs Khung Quach, Tan Quach, Phong Quach and Kristine Carash (Plaintiffs)' motion to strike and/or tax costs of defendants Thai Quach, T&T California Collision, Inc., and California Motor Coach, Inc. (Defendants) is DENIED.

Defendants Memorandum of Costs was filed and served 10/3/2025 ("Memo of Costs"). Plaintiffs' motion to strike and/or tax costs was timely filed (less than 15 days later) on 10/17/2025. (See Cal Rules of Court (CRC) rule 3.1700(b)(1).)³

Defendants' Memo of Costs was verified by Kevin R. Elliot (counsel for Defendants) under penalty of perjury that "[t]o the best of my knowledge, the items of costs are correct and were necessarily incurred in this case." (See Memo of Costs, p. 1.) There was no declaration served with Plaintiffs' moving papers to strike and/or tax costs filed 10/17/2025.

There is simply no justification in Plaintiffs' moving papers filed 10/17/2025 for Plaintiff's request for the court to reduce costs actually incurred by 50 percent (which were filed without *any* supporting declaration.)

Plaintiffs admit in their motion that two subject cases (this case No. 22CV398325 and Thai Quach et al vs Kristine Carash, et al, case No. 21CV389732) were consolidated for discovery purposes. (See Plaintiffs' MPA, p.3.)

Items 11, 12, 23, 31, 35, 36, and 39 are deposition subpoenas for records recoverable under CCP section 1033.5(a)(3) and/or (a)(4). These costs were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

Items Nos. 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 24, 26, 27, 28, 29, 30, 32, 33, 34, 38, 40, 43 are deposition transcripts or costs recoverable under CCP section 1033.5(a)(3) and/or (a)(4). These costs were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

Item 42 is service of a subpoena recoverable under CCP section 1033.5(a)(3) and/or (a)(4). These costs were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

Item 44 for the JAMS Mediation Fee is recoverable at the court's discretion. Mediation costs are *not* recoverable as a matter of right under CCP sections 1032 and 1033.5, but the court has discretion to award them. CCP section 1033.5 subdivision (c)(4) authorizes the trial court to exercise its discretion to award costs for items not specifically allowed nor prohibited under subdivisions (a) and (b), so long as they are "reasonably necessary to the conduct of the

³ CRC, Rule 3.1700(b)(1) states:

Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6 (a)(3).

litigation rather than merely convenient or beneficial to its preparation.”) (CCP § 1033.5(c)(2).) An award of costs for mediation expenses is *not* statutorily proscribed. (CCP § 1033.5(b); *Gibson v. Bobroff* (1996) 49 Cal. App. 4th 1202, 1208 [“We conclude the legislation does not foreclose an award of mediation expenses as costs.”] These costs were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

The declarations of Kevin R. Elliot (1) in Defendants’ Memo of Costs filed 10/17/2025 and (2) filed with the opposition papers on 2/26/2026 are persuasive.

Plaintiffs’ motion to strike and/or tax costs of Defendants is DENIED.

The court will prepare the order.

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Case Name: *Martin Gonzalez vs City of San Jose et al*

Case No.: 25CV460802

Good cause appearing, defendant County of Santa Clara (County) motion for an order awarding its defense costs pursuant to Code of Civil Procedure (CCP) section 1038 (in the requested amount of \$14,485.70) against plaintiff Martin Gonzalez (Plaintiff) is GRANTED IN PART in the reasonable amount of **\$14,336.70**. Plaintiff shall pay this amount to the County within 30 days of this order.

The County's request that Plaintiff's counsel: Harris Personal Injury Lawyers, Inc. (Plaintiff's Counsel) should be ordered to pay the County directly from any funds recovered by way of judgment or settlement in these proceedings (if Plaintiff does not pay defense costs within 30 days) is DENIED WITHOUT PREJUDICE. The County cited no legal authority for making this order to Plaintiff's Counsel.

Discussion

Here, the court finds that Plaintiff did *not* bring or maintain the proceeding against the County in "good faith" and with "reasonable cause." (CCP §1038, subds. (a), (c).)

[CCP] Section 1038 authorizes the defendants or cross-defendants to recover reasonable costs after prevailing on a dispositive motion (i.e., summary judgment, directed verdict, nonsuit, judgment before presentation of defense evidence, or other motion in an action for indemnity or contribution). (§ 1038, subds. (a), (c).) A defendant may not recover section 1038 costs simply because it won a summary judgment or other dispositive motion; victory does not per se indicate lack of reasonable cause. (See *Ford Motor Co. v. Schultz* (1983) 147 Cal. App. 3d 941, 951 (*Ford Motor*).) That victory is simply the first step. Following the court's determination of the dispositive motion, and before the court discharges the jury or enters the requisite judgment, the defendant must also make a motion for defense costs, as the statute directs, alleging that the plaintiff did not bring or maintain the proceeding in "good faith" and with "reasonable cause." (§ 1038, subds. (a), (c).) An award of defense costs may be made only on notice and an opportunity to be heard, and the court determines section 1038 liability as a matter of law. (§ 1038, subd. (a).) In seeking section 1038 costs, the defendant waives its right to malicious prosecution damages, to the extent the right exists, although the failure to make the motion will not be deemed a waiver of the right to pursue a malicious prosecution action. (§ 1038, subd. (c).) (*Kobzoff v. Los Angeles County Harbor/UCLA Medical Center* (1998) 19 Cal. 4th 851, 856-857 (*Kobzoff*).)

Plaintiffs' counsel fails to recognize that the determination of whether a party should be named in the original filing of a lawsuit is not predicated upon the attorney's belief that his client's interests are protected by naming every conceivable defendant, but whether the plaintiff has *initially* ". . . brought the proceeding with reasonable cause and in the good faith belief that there was a justiciable controversy under the facts and law which warranted the filing of the complaint" (§ 1038, subd. (a).)

[CCP] Section 1038 requires that before a civil action is filed or maintained, two conditions are to be met. The first condition is that the action be brought in "good faith." The term "good faith" defies precise definition. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 495.) "[It] is a question of fact in each case." (*Critz v. Farmers Ins. Group* (1964) 230 Cal.App.2d 788, 796.) Encompassed within the legal definition of "good faith" is the equitable principle of fairness. (Cf. *River Garden Farms, Inc. v. Superior Court* (1972) 26 Cal.App.3d 986, 996-998.)

The second condition is that the action be brought "with reasonable cause." We believe the terms "reasonable cause" and "probable cause" to be synonymous. (See *Curry v. Superior Court* (1970) 7 Cal.App.3d 836, 847.) "Reasonable cause" is defined as ". . . whether any reasonable attorney would have thought the claim tenable . . ." (*Sheldon Appel Co. v. Albert & Olier* (1989) 47 Cal.3d 863, 886.)

(*Carroll v. Cal.* (1990) 217 Cal. App. 3d 134, 141.)

Under [CCP] section 1038 a plaintiff who lacks even the basis for a reasonable belief in the existence of all essential elements of his or her claim cannot simply name every conceivable defendant and rely on what future discovery may turn up."

(*Kobzoff, supra*, 19 Cal. 4th at 858.)

Furthermore, "[t]he filing of a claim is a condition precedent to the maintenance of any cause of action against the public entity and is therefore an *element* that a plaintiff is required to prove in order to prevail." [Citations.] (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal. 4th 983, 990.) "[A]n undelivered or *misdirected* claim fails to comply with the statute. [Citation.]" (*Id.*, at 992 [emphasis added].)⁴ Here, Plaintiff did *not* present a prelitigation claim to the County, it was *misdirected* to the Superior Court, and in those circumstances, the court finds that no "reasonable attorney would have thought the claim tenable." (*Kobzoff, supra*, 19 Cal. 4th at 857.)

The 51.3 hours billed and rates charged by the County's attorneys in this matter were reasonable and necessary, *except* for the 9/16/2025 entry by the paralegal for 1.00 at the rate of \$149 per hour (which appears to be a duplicate entry for 9/15/2026 to Review Plaintiff's Non-Opposition to Defendant's Motion for Summary Judgment). [The amount requested of \$14,475.70 minus \$149 equals the reasonable amount awarded of \$14,336.70. The requested 51.3 hours (minus 1 paralegal hour) equals 50.3 hours that the court finds were reasonable and necessary.]

The court notes that there were minor errors in the declaration of the County's attorney (Gregory Charles) in paragraph 15 about the rates charged where he states that all attorney time was billed at \$291 per hour and paralegal time at \$139 per hour. Exhibit G to his declaration shows *attorney time* was billed at the rate of \$291 per hour until 6/30/2025 and the rate of \$303 per hour thereafter (which the court finds are reasonable rates). Exhibit G to his declaration

⁴ Plaintiff's counsel received a USPS receipt that (shows on its face) the prelitigation claim for the County was misdirected and sent to the Superior Court at 191 North First Street, San Jose CA 95113, instead of the County. (See Crosby Decl., ¶3, Ex. B.; Reply, p. 2.) It was *not* reasonable for Plaintiff's counsel to believe that the prelitigation claim was properly delivered to the County (based on that USPS receipt) when Plaintiff received no response to the prelitigation claim by the County.

shows that *paralegal time* was billed at the rate of \$139 per hour until 6/30/2025 and the rate of \$149 per hour thereafter (which the court finds are reasonable rates.)

Plaintiff's objections are otherwise overruled.

Conclusion

Good cause appearing, the County's motion for an order awarding its defense costs pursuant to CCP section 1038 against Plaintiff is GRANTED IN PART in the reasonable amount of **\$14,336.70**. Plaintiff shall pay this amount to the County within 30 days of this order.

The County's request that Plaintiff's Counsel should be ordered to pay the County directly from any funds recovered by way of judgment or settlement in these proceedings (if Plaintiff does not pay defense costs within 30 days) is DENIED WITHOUT PREJUDICE. The County cited no legal authority for making this order to Plaintiff's Counsel.

The court will prepare the order.

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